

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
LUIS REYES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE NELSON
NIN (Shield # 5300); and NYPD OFFICERS JOHN and
JANE DOE #'s 1-12 (names and numbers unknown at this
time), and other unidentified members of the New York
City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 10, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE NELSON NIN (Shield # 5300), Narcotics Bureau, Bronx, NY

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
LUIS REYES,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE NELSON
NIN (Shield # 5300); and NYPD OFFICERS JOHN and
JANE DOE #'s 1-12 (names and numbers unknown at this
time), and other unidentified members of the New York
City Police Department,

Defendants.
-----X

Plaintiff **Luis Reyes**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Queens County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE NELSON NIN, assigned Shield # 5300, who at the time of this incident was employed with the Bronx County Narcotics Division and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD DETECTIVE NELSON NIN (Shield # 5300) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on August 26, 2021.

STATEMENT OF FACTS

15. On February 9, 2019 at approximately 11:30 a.m. between St. Ann's Avenue and Brook Avenue, in Bronx, New York,, numerous police officers from the Bronx Narcotics Bureau, the 40th Precinct, and other unknown police commands, including upon information and belief, defendants NYPD Detective Nelson Nin (Shield # 5300) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Ruiz.
16. On February 9, 2019 at approximately 11:30 a.m., Plaintiff Ruiz was walking when defendant officers unlawfully stopped and searched him.

17. Prior to this stop, Plaintiff Ruiz had not engaged in any criminal or suspicious acts justifying his stop.
18. Defendant NYPD officers alleged that Plaintiff Ruiz sold heroin to an undercover officer, but that is false. He was never sold heroin to anyone and no pre-recorded buy money was recovered from his person.
19. Prior to Plaintiff Ruiz's arrest, he was not identified by any non-police witnesses as having engaged in any criminal acts.
20. Despite the lack of any evidence he had committed any crime, Plaintiff Ruiz was arrested and subjected to a non-consensual and unlawful search.
21. After his arrest, Plaintiff was transported to the 40th Precinct.
22. Thereafter, Plaintiff was transported to Brooklyn Central Booking. While Plaintiff was incarcerated at the 40th Precinct in Bronx, New York, he was subjected to an unlawful search.
23. Plaintiff was later transported to Central Booking. Prior to his arraignment, NYPD Officer defendants, including defendant officer Nin, falsely and maliciously told the Bronx County District Attorney's Office that Plaintiff had sold drugs to an undercover officer, when he had not done so.
24. Defendant NYPD officers, including NYPD officer Nin, also falsely told the Bronx County District Attorney that Plaintiff had committed the crime of Criminal Sale of a Possession of a Controlled Substance, among other related crimes. Defendants knew these allegations to be false because Plaintiff was never observed engaged in any crime prior to his arrest.
25. At his arraignment, Plaintiff was released on his own recognizance. Subsequently, he was rearrested for a parole violation as a direct result of this arrest. Plaintiff was detained for six and a half months at Rikers Island. He made approximately nine court appearances.

26. During his time in custody, he was assaulted by inmates who hit him with chains. He suffered injuries to his back and face. Subsequent to his release from Riker's Island, he was diagnosed with five herniated discs in his back.
27. The case was dismissed and sealed March 18, 2021.
28. As a direct result of Plaintiff's false arrest and malicious prosecution, Plaintiff remained in custody for nearly seven months, during which time was assaulted by fellow inmates. Plaintiff continues to suffer severe emotional trauma from his illegal arrest and malicious prosecution. Plaintiff suffered significant and prolonged injuries as a result of his months in custody.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
30. All of the aforementioned acts of defendants NYPD Detective Nelson Nin (Shield # 5300) and NYPD Officers John and Jane Doe #'s 1-12, their agents, servants, and employees, were carried out under the color of state law.
31. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
34. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

35. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
36. As a result of the aforesaid conduct by defendants NYPD Detective Nin and NYPD Officers John and Jane Doe #'s 1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD Officer. As a direct result of defendant officers' action, Plaintiff Ruiz was taken into custody, falsely imprisoned, detained and confined without probable cause, privilege or consent.
37. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. Plaintiff person was searched by defendants NYPD Office Nin and NYPD Officers John and Jane Doe #'s 1-12, without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
40. As a result of the aforesaid conduct by defendants NYPD Officers Nin and NYPD Officers John and Jane Doe #'s 1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
41. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
43. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12, created false evidence against the plaintiff, alleging that he committed the crime of Sale of a Controlled Substance, among other related crimes.
44. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that Plaintiff had committed the

crime of Sale of a Controlled Substance, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses.

45. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
46. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
47. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
49. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings. Defendant officers were aware of exculpatory evidence

negating Plaintiff's guilt, but failed to share it with the Kings County District Attorney's office in a timely manner.

50. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
51. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
53. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12, misrepresented and falsified evidence before the Kings County District Attorney, including false allegations that Plaintiff committed the crimes of Sale of a Controlled Substance, and other related crimes.
54. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 did not make a complete and full statement of facts to the District Attorney. In particular, they failed to inform the District Attorney of the unreliability of Plaintiff's identification as the seller of drugs to an undercover officer.

55. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 withheld exculpatory evidence from the District Attorney.
56. Defendants NYPD Officer Nin, and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
57. Defendants NYPD Officer Nin, and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
58. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in initiating criminal proceedings against plaintiff.
59. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
60. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to continue criminal proceedings against plaintiff.
61. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in continuing criminal proceedings against plaintiff.
62. Defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
63. Specifically, defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
64. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD Officer Nin and NYPD Officers John and Jane Doe #'s 1-12, the criminal proceedings were terminated in Plaintiff's favor on March 18, 2021.

65. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
68. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

69. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

70. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

71. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

72. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

73. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

74. The acts complained of deprived the Plaintiff of their right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, LUIS REYES, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
October 10, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE NELSON NIN (Shield # 5300), Narcotics Bureau, Bronx, NY

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
October 10, 2022

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.